SALES LETTER OF INTENT

销售意向书

Sales Channel Outreach and Negotiation (New Zealand and Overseas) — HBay Water

销售渠道接触与洽谈（新西兰本地及海外）— HBay Water

Date / 日期	**[●]**
Reference / 编号	[LOI-2026-0XX]
Party A (Client) / 甲方（客户）	New Zealand Miracle Water Limited, trading as HBay Water **[company details deferred / 公司信息暂缓]**
Party B (Provider) / 乙方	Ray Pengyu Deng, Sole Trader trading as Magic Engine, 29 Mauranui Ave, Epsom, Auckland, New Zealand · GST No. 083-039-408
Related agreement / 关联协议	Digital Marketing & Brand Operations Service Agreement [SA-2026-0XX] (the "Service Agreement" / "服务协议")

1. PURPOSE / 目的

1.1 Party A wishes to sell HBay Water products in New Zealand and overseas markets. Party B is willing to help by contacting and negotiating with potential sales channels on Party A's behalf. This Letter records the parties' shared intention and the way they will work together while a definitive commission arrangement is prepared.

甲方希望在新西兰本地及海外市场销售 HBay Water 产品。乙方愿意代表甲方接触潜在销售渠道并进行洽谈。本意向书记录双方的共同意向，以及在正式分成约定拟定期间的合作方式。

1.2 Except for Clauses 6 to 11 (which are binding), this Letter is a statement of intention only and does not oblige either party to enter into a sales arrangement or to complete any sale.

除第 6 至 11 条（具有约束力）外，本意向书仅为意向声明，不要求任何一方必须订立销售安排或完成任何交易。

2. MARKETS AND CHANNELS / 市场与渠道

2.1 **Territory / 服务区域:** New Zealand (local), Singapore, Taiwan and Hong Kong. Other markets may be added by written agreement. / 新西兰本地、新加坡、台湾和香港。其他市场经书面同意可增加。

2.2 **Channel types / 渠道类型:** distributors and importers, retailers and supermarkets, hospitality and corporate buyers, online marketplaces and e-commerce platforms, and other sales channels agreed in writing. / 经销商与进口商、零售商与超市、餐饮酒店与企业买家、线上平台与电商，以及经书面同意的其他渠道。

3. WHAT PARTY B WILL DO / 乙方的工作

3.1 Within the markets in Clause 2 and with Party A's agreement, Party B will: / 在第 2 条所列市场内，经甲方同意，乙方将：

- (a) research and shortlist potential channel partners; / 调研并筛选潜在渠道伙伴；
- (b) make first contact and introduce HBay Water, using materials Party A has supplied or approved; / 使用甲方提供或批准的材料首次接触并介绍 HBay Water；
- (c) hold exploratory discussions, collect each channel's requirements (pricing, volumes, labelling, certifications, logistics) and report them to Party A; / 开展初步洽谈，收集各渠道的要求（价格、数量、标签、认证、物流）并向甲方汇报；

- (d) support Party A in negotiations, including preparing proposals and follow-up. / 协助甲方洽谈，包括准备方案与跟进。

3.2 Party B reports progress to Party A [monthly / every ● weeks] and keeps a record of every contact made. / 乙方［每月 / 每●周］向甲方汇报进展，并记录每一次接触。

3.3 The services above are separate from the services and fee in the Service Agreement, which are not changed by this Letter. / 上述工作独立于服务协议中的服务和费用，本意向书不改变服务协议。

4. PARTY A'S ROLE AND RESPONSIBILITIES / 甲方的角色与责任

4.1 **Party A is the seller.** Party A decides whether to sell to any channel, sets prices and terms, signs the sale contracts, invoices, ships and collects payment. / **甲方是卖方。** 由甲方决定是否向某渠道销售，设定价格和条款，签订销售合同，开票、发货并收款。

4.2 Party B has no authority to bind Party A, agree prices, discounts or terms, or make promises about the products, unless Party A approves them in writing. / 除非经甲方书面批准，乙方无权约束甲方、商定价格、折扣或条款，也不得就产品作出承诺。

4.3 Party A is responsible for the products and every claim about them, and for export and import requirements in each market (including permits, certification, labelling, food-safety and customs). Party A supplies samples, product information and price lists on request. / 甲方对产品及关于产品的所有宣称负责，并负责各市场的出口与进口要求（含许可、认证、标签、食品安全和报关）。甲方应按要求提供样品、产品资料和价格表。

5. COMMISSION — TO BE AGREED / 提成——另行商定

5.1 The parties intend that Party B will earn a commission on sales to channels it introduces. **The commission model and rate have not been agreed.** They depend on the cost modelling, which has not been completed. The basis of calculation, the sales covered, how a sale is credited to Party B, the period it applies for and payment timing will be set in a separate written commission arrangement once the modelling is done. / 双方意向是：乙方就其介绍渠道所产生的销售获得提成。**提成方式和比例尚未商定**，取决于尚未完成的成本测算。计算基础、适用的销售范围、如何认定某笔销售归乙方、适用期限及付款时间，待测算完成后在另行订立的书面提成约定中确定。

5.2 **Until that commission arrangement is signed by both parties, Party B is not entitled to claim any commission or fee from Party A under this Letter**, and Party A has no obligation to pay any. / **在双方签署该提成约定之前，乙方无权依本意向书向甲方主张任何提成或费用，甲方也无支付义务。**

5.3 [Optional, PM to decide: the parties intend the commission arrangement to cover introductions made by Party B from the date of this Letter. / 可选，待你决定：双方意向是该提成约定将涵盖乙方自本意向书日期起所作的介绍。]

6. NON-EXCLUSIVITY — BINDING / 不排他（有约束力）

This Letter is non-exclusive. Party A may sell through anyone, including its own efforts and other agents. Party B may work for others, but not in a way that conflicts with the Service Agreement or breaches Clause 7.

本意向书不排他。甲方可通过任何人销售，包括自己或其他代理。乙方可为他人工作，但不得与服务协议冲突，也不得违反第 7 条。

7. INTRODUCED BUYERS ARE PROTECTED — BINDING / 已介绍买家予以保留（有约束力）

7.1 Buyers and channel partners that Party B has introduced to Party A in writing (recorded under Clause 3.2) are protected. Party A will not deal with them in a way designed to avoid a commission that would otherwise be payable under the later commission arrangement. / 乙方已书面介绍给甲方（并按第 3.2 条记录）的买家和渠道伙伴予以保留。甲方不得为规避日后提成约定下本应支付的提成，而与其作出安排。

7.2 The details — how long the protection lasts, how an introduction is recorded and confirmed, which sales it covers and what happens to introduced buyers who were already in contact with Party A — will be agreed separately and set out in the commission arrangement. [Until then, the protection lasts for the term of this Letter and [●] months after.] / 具体细节——保留多长时间、如何记录和确认一次介绍、涵盖哪些销售、

以及已与甲方有过联系的买家如何处理——另行商议，并写入提成约定。［在此之前，保留期为本意向书期限及其后［●］个月。］

8. CONFIDENTIALITY AND DATA — BINDING / 保密与数据（有约束力）

8.1 Each party keeps confidential all non-public information disclosed by the other (including price lists, supplier terms and channel details) and uses it only for the purposes of this Letter, during the term and for three (3) years after. / 各方对对方披露的非公开信息（含价格表、供应条款和渠道信息）保密，仅用于本意向书目的，期限为协议期内及其后三（3）年。

8.2 Each party handles personal information of channel contacts under the laws that apply to it, including the New Zealand Privacy Act 2020, and does not sell it. / 各方依适用于其的法律（含新西兰《2020 年隐私法》）处理渠道联系人的个人信息，且不出售。

9. COSTS — BINDING / 费用（有约束力）

Each party bears its own costs of the work under this Letter. Party B does not pay for samples, shipping, travel, trade-show fees, translation or legal advice in the target markets unless Party A agrees in writing beforehand to cover them.

各方自行承担本意向书项下工作的费用。样品、运费、差旅、展会费、翻译以及目标市场的法律咨询费，除非甲方事先书面同意承担，否则不由乙方承担。

10. TERM AND ENDING — BINDING / 期限与终止（有约束力）

This Letter runs for three (3) months, starting and ending on the same dates as the initial Term of the Service Agreement [from ● to ●]. If the Service Agreement is extended, the parties will discuss extending this Letter at the same time. It also ends earlier when the commission arrangement is signed. Either party may end it earlier by [fourteen (14)] days' written notice. Clauses 5.2, 7, 8, 9 and 11 continue after it ends.

本意向书有效期三（3）个月，起止日期与服务协议的初始期限一致［自●至●］。服务协议续期时，双方同时商讨本意向书是否续期。提成约定签署时本意向书也提前结束。任何一方可提前［十四（14）］日书面通知终止。第 5.2、7、8、9、11 条在终止后继续有效。

11. GOVERNING LAW AND LANGUAGE — BINDING / 适用法律与语言（有约束力）

This Letter is governed by the laws of New Zealand, and the parties submit to the non-exclusive jurisdiction of New Zealand courts. It may be signed in counterparts, including electronically. It is made in English and Chinese; if they differ, the English version prevails.

本意向书受新西兰法律管辖，双方服从新西兰法院的非排他性管辖。可分别签署，电子签署有效。本意向书以中英文书写，两者不一致时以英文为准。

SIGNATURES / 签署

PARTY A (Client) / 甲方 **New Zealand Miracle Water Limited** **Signatory / 签字人：Lisa Fu**	**PARTY B / 乙方** **Ray Pengyu Deng, Sole Trader trading as Magic Engine**
Authorised signature / 授权签字： Name / 姓名：Lisa Fu Title / 职务：[●] Date / 日期：	Authorised signature / 授权签字： Name / 姓名：Ray Pengyu Deng Title / 职务：Founder, Magic Engine (Sole Trader) Date / 日期：

待你确认 / Open items for the PM

1. 提成方式和比例（成本测算完成后）。/ Commission model and rate (after costing).

2. Lisa Fu 的职务。/ Lisa Fu's title.

3. 买家保留的具体做法（期限、记录方式、已有联系买家如何处理）。/ Details of introduced-buyer protection.

4. 合同起止日期，需和服务协议一致。/ Start and end dates, matching the Service Agreement.